

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF ROGACHEV AND OTHERS v. RUSSIA

(Applications nos. 64754/14 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

23 March 2023

This judgment is final but it may be subject to editorial revision.



In the case of Rogachev and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 2 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

6. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

7. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of

interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

8. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

9. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interference with the applicants' freedom of assembly was not "necessary in a democratic society".

10. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 84-138, 10 April 2018, as regards unlawful administrative arrest, and *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences).

IV. REMAINING COMPLAINTS

12. In view of its findings above, the Court considers that there is no need to deal separately with the remaining complaints under Article 6 of the Convention raised by some of the applicants in relation to other aspects of the fairness of the proceedings.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

13. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

14. Regard being had to the documents in its possession and to its case-law (see, in particular, *Saidov v. Russia* [Committee], no. 31872/19, § 23, 26 July 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the right to peaceful assembly and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine separately the remaining complaints under Article 6 of the Convention concerning other aspects of the fairness of the proceedings,

3. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the right to peaceful assembly;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 23 March 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Lətif Hüseynov
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	64754/14 16/09/2014	**Mikhail Borisovich ROGACHEV** 1952	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation against the war in Ukraine Syktyvkar 16/03/2014	Article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Komi Republic 10/09/2014	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest on 16/03/2014; detention in excess of 3 hours, Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative proceedings: Final decision: Supreme Court of the Komi Republic on 10/09/2014	4,000
2.	54040/17 17/07/2017	**Ivan Sergeyevich DOLIN** 1986	Terekhov Konstantin Ilyich Moscow	Anti-corruption manifestation Tula 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Tula Regional Court 26/04/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unlawful and disproportionate administrative escorting and arrest on 26/03/2017 (it was possible to draw up a record on the spot; detention over 3 hours in breach of Article § 27.5 CAO), Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative proceedings: Final decision: Tula Regional Court on 26/04/2017	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	79261/17 02/11/2017	**Anatoliy Vladimirovich MAKAROV** 1989	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhny Novgorod 26/03/2017	Article 19.3 § 1 of CAO, Article 20.2 § 5 of CAO	fines of RUB 500 and RUB 10,000	Nizhniy Novgorod Regional Court 03/05/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested at 2.40 p.m. on 26/03/2017, brought to a police station to draw up a record of administrative offence; released on the following day at 1.05 p.m.	4,000
4.	79264/17 02/11/2017	**Vladislav Gennadyevich POPOV** 1992	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhny Novgorod 26/03/2017	Article 20.2 § 5 of CAO, Article 19.3 § 1 of CAO	fine of RUB 10,000 and RUB 500, respectively	Nizhniy Novgorod Regional Court 23/05/2017 Nizhniy Novgorod Regional Court 04/05/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested at 2.40 p.m. on 26/03/2017, brought to a police station to draw up a record of administrative offence; released on the following day at 1.05 p.m.	4,000
5.	80804/17 16/11/2017	**Dmitriy Andreyevich KRYUKOV** 1993	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 17/05/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested on 26/03/2017 at 4.10 p.m. during the assembly; brought to the police station to draw up a record of administrative arrest; released on the same day at 9 p.m.; the issue of the detention was examined by the appeal court, Art. 6 (1) - lack of impartiality of tribunal - prosecuting party absent in administrative proceedings: Final decision: Nizhniy Novgorod Regional Court on 17/05/2017	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
6.	80808/17 16/11/2017	**Vladimir Aleksandrovich MICHUROV** 1965	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption demonstration Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 17/05/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested on 26/03/2017 at 4.10 p.m. during the assembly; brought to the police station to draw up a record of administrative arrest; released on the same day at 9 p.m.; the issue of the detention was examined by the appeal court, Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative proceedings: Final decision: Nizhniy Novgorod Regional Court on 17/05/2017	4,000
7.	285/18 07/12/2017	**Pavel Sergeyevich DEGTEV** 1993	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested on 26/03/2017 at 2.10 p.m. during the assembly; brought to the police station to draw up a record of administrative arrest; released on the same day at 7.30 p.m.; the issue of the detention was examined by the appeal court, Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative proceedings: Final decision: Nizhniy Novgorod Regional Court on 15/06/2017	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
8.	2443/18 08/12/2017	**Eduard Yuryevich BESHLIYEV** 1991	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/06/2017	Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative proceedings: Final decision: Nizhniy Novgorod Regional Court on 15/06/2017	3,500
9.	2455/18 30/11/2017	**Eduard Georgiyevich CHUPROV** 1976	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 08/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - Unrecorded detention for four hours on 26/03/2017, raised on appeal, Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative proceedings: Final decision: Nizhniy Novgorod Regional Court on 08/06/2017	4,000
10.	2471/18 30/11/2017	**Yevgeniy Aleksandrovich LAZAREV** 1990	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest on 26/03/2017 during the manifestation for the sole purpose of drawing up a record, issue examined by the appeal court, Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative proceedings: Final decision: Nizhniy Novgorod Regional Court on 15/06/2017	4,000

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11.	2474/18 30/11/2017	**Yelena Vasilyevna AYBAZOVA** 1961	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 01/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest on 26/03/2017 during the manifestation for the sole purpose of drawing up a record of an administrative offence, issue examined by the appeal court, Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative proceedings: Final decision: Nizhniy Novgorod Regional Court on 01/06/2017	4,000
12.	2478/18 30/11/2017	**Sergey Vladimirovich KOROTKOV** 1983	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest on 26/03/2017 during the manifestation for the sole purpose of drawing up a record of an administrative offence, issue examined by the appeal court, Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative proceedings: Final decision: Nizhniy Novgorod Regional Court on 15/06/2017	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
13.	2483/18 30/11/2017	**Dmitriy Alekseyevich OSTAPETS** 1997	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest on 26/03/2017 during the manifestation for the sole purpose of drawing up a record of an administrative offence, issue examined by the appeal court, Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative proceedings: Final decision: Nizhniy Novgorod Regional Court on 15/06/2017	4,000
14.	2489/18 30/11/2017	**Natalya Valeryevna REZONTOVA** 1968	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Nizhniy Novgorod Regional Court 07/09/2017	Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative proceedings: Final decision: Nizhniy Novgorod Regional Court on 07/09/2017	3,500
15.	2568/18 08/12/2017	**Aleksey Nikolayevich MAKEYEV** 1977	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - applicant arrested on 26/03/2017 at 4.10 p.m. during the manifestation, taken to the police station to draw up a record of administrative offence and was released at approximately 9 p.m. on the same day; raised that complaint in the administrative proceedings,	4,000

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								Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative proceedings: Final decision: Nizhniy Novgorod Regional Court on 15/06/2017	
16.	2569/18 08/12/2017	**Vladislav Igorevich BELOGLAZOV** 1997	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - the applicant was arrested on 26/03/2017 during the manifestation, at approximately 4.10 p.m., and taken to a police station to draw up a record of administrative offence; he was released at approximately 9 p.m. on the same day, the complaint was raised on appeal, Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative proceedings: Final decision: Nizhniy Novgorod Regional Court on 15/06/2017	4,000
17.	2570/18 08/12/2017	**Oleg Vasilyevich IGNATOV** 1990	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-corruption manifestation Nizhniy Novgorod 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 13/09/2017	Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative proceedings: Final decision: Nizhniy Novgorod Regional Court on 13/09/2017	3,500

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18.	11462/18 07/02/2018	**Sergey Andreyevich LUNTS** 1981	Ratnikova Svetlana Sergeyevna St Petersburg	Collection of appeals to the President of Russia St Petersburg 29/04/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 08/08/2017		3,500
19.	12896/18 09/03/2018	**Anastasiya Sergeyevna GROMYKO** 1995	Dobralskiy Aleksandr Igorevich Kaliningrad	Anti-corruption manifestation Leninskiy Avenue, Kaliningrad 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Kaliningrad Regional Court 07/09/2017 (received on 26/09/2017)	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative proceedings: Final decision: Kaliningrad Regional Court on 07/09/2017 (received on 26/09/2017)	3,500
20.	17280/18 20/03/2018	**Denis Vladimirovich ZUTIKOV** 1998	Preobrazhenskaya Oksana Vladimirovna Strasbourg	Anti-corruption demonstration Moscow, Pushkin square 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 10/10/2017	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative proceedings: Moscow City Court on 10/10/2017	3,500

[1] Plus any tax that may be chargeable to the applicants.